

8	24CV432356	Lisa Bargas et al vs Thomas Zscherpel	Defendant’s motion to enforce settlement is GRANTED. For the Court to enforce a settlement pursuant to Code of Civil Procedure section 664.6, the Court must first determine whether the parties entered a valid and binding settlement of all or part of the case. (<i>Corkland v. Boscoe</i>, (1984) 156 Cal. App. 3d 989.) The parties’ settlement agreement must contain all material terms and the parties must agree to those terms to have a meeting of the minds necessary for contract formation. (<i>Weddington Productions, Inc. v. Flick</i> (1998) 60 Cal.App.4th 793.) Study of the exhibits attached to the Declaration of Steven Sayad reveals that these requirements for enforcement are met. Exhibit A makes a conditional policy limit demand with the following terms (1) acceptance before April 27, 2024, (2) proof of all liability insurance policies, their limits, and unredacted declaration pages, and (3) if there is a release, it be consistent with the terms of the demand. The letter further states that these terms are all material, and “any deviation from this settlement demand within the release will be treated as a counteroffer.” Defendant responds in writing on April 19, 2024, (1) accepting the demand, (2) providing proof of the only liability insurance policy Defendant has, confirming that no others exist and including an unredacted declaration page, and (3) enclosing a release consistent with the terms of the policy limits demand. It appears from emails attached as Exhibit F that post-acceptance, Plaintiff sought an asset affidavit. However, an asset affidavit is not in the demand attached as Exhibit A (although it appears that was part of an earlier demand Defendant rejected). Plaintiff’s argument that the demand was too uncertain to accept is unpersuasive. The Court need not rely on extrinsic evidence to conclude that the demand related only to Thomas Bargas, since the entire focus of the demand relates to his injuries and makes no mention of Lisa Bargas. And the letter, which Plaintiff wrote, demands “acceptance” by a date certain; the plain language of the letter makes clear that Plaintiff intended it to be an offer when written. The letters, taken together, are a textbook offer and acceptance right out of law school exam. Defendant’s motion is accordingly granted. Court to prepare formal order.
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9	22CV398742	Richard Gardner et al vs Linming Jin et al	Plaintiff's motion for leave to file a first amended complaint is DENIED. The Court continued this motion from July 18 to permit Plaintiff to submit a redlined first amended complaint that showed both Plaintiff's proposed additions and deletions so that at least this portion of Plaintiff's motion would comply with California Rule of Court, Rule 3.1324. Despite this continuance, Plaintiff failed to include deletions that the Court is aware of, once again creating doubt about whether all Plaintiff's proposed changes have been disclosed. Plaintiff also fails to submit a declaration that explains "(2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier." For these reasons alone, Plaintiff's motion is properly denied. (<i>Hataishi v. First American Home Buyers Protection Corp.</i> (2014) 223 Cal. App. 4th 1454 (trial court's denial of amendment affirmed where Plaintiff failed to file a noticed motion to amend or make the required evidentiary showing under California Rule of Court, Rule 3.1324.) Plaintiff also substantially delayed bringing this motion without explanation. "A long unexcused delay may be the basis for denying permission to amend pleadings. (<i>Moss Estate Co. v. Adler</i> (1953) <i>supra</i>, 41 Cal.2d 581, 586; <i>Bernstein v. Financial Indem. Co.</i> (1968) 263 Cal.App.2d 324, 328 [69 Cal.Rptr. 543]; <i>Stanley v. Kawakami</i> (1954) 127 Cal.App.2d 277, 279 [273 P.2d 709]), especially where the proposed amendment interjects a new issue (<i>Vogel v. Thrifty Drug Co.</i> (1954) <i>supra</i>, 43 Cal.2d 184, 189; <i>Donahue v. Ziv Television Programs, Inc.</i> (1966) 245 Cal.App.2d 593, 611 [54 Cal.Rptr. 130]), which may require further investigation or discovery procedures (<i>Waxman v. Superior Court</i> (1966) 246 Cal.App.2d 668, 671 [54 Cal.Rptr. 924]; <i>Hayutin v. Weintraub</i> (1962) 207 Cal.App.2d 497, 508 [24 Cal.Rptr. 761])." (<i>Nelson v. Specialty Records, Inc.</i> (1970) 11 Cal. App. 3d 126, 139.) Trial is set for November 18, 2024, after the parties agreed to a continuance, without Plaintiff seeking to amend the complaint at that time. Although, "[i]t is a rare case in which 'a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case,'" the Court finds this to be such a rare case. (<i>Guidery v. Green</i>, 95 Cal. 630, 633; <i>Marr v. Rhodes</i>, 131 Cal. 267, 270.) Permitting this amendment now, after Plaintiff's delay and failure to timely comply with the rules even after the Court granted a continuance unfairly prejudices the Defendants' ability to timely conduct discovery and prepare for trial, and improperly condones Plaintiff's failure to timely and correctly seek this leave. (See <i>Nelson v. Superior Court</i>, 97 Cal.App.2d 78; <i>Estate of Herbst</i>, 26 Cal.App.2d 249; <i>Norton v. Bassett</i>, 158 Cal. 425, 427.) The motion is accordingly denied. Court to prepare formal order.
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